

is not a king, therefore he cannot make David a king. It followeth not by the Prelate's ground. So the king is not an inferior judge. What! Therefore he cannot make an inferior judge? 9. The power of life and death is eminently and virtually in the people, collectively taken, though not formally. And though no man can take away his own life, or hath power over his own life formally, yet a man, and a body of men, hath power over their own lives, radically and virtually, in respect they may render themselves to a magistrate, and to laws which, if they violate, they must be in hazard of their lives; and so they virtually have power of their own lives, by putting them under the power of good laws, for the peace and safety of the whole. 10. This is a weak consequence. None hath power of his own life, therefore, far less of his neighbour's (saith the Prelate). I shall deny the consequence. The king hath not power of his own life, that is, according to the Prelate's mind, he can neither, by the law of nature, nor by any civil law, kill himself; therefore, the king hath far less power to kill another; it followeth not; for the judge hath more power over his neighbour's life than over his own. 11. But, saith the P. Prelate, the community conceived without government, all as equal, endowed with nature's and native liberty, hath no power of life and death, because all are born free; and so none is born with dominion and power over his neighbour's life. Yea, but so, Mr P. Prelate, a king considered without government, and as born a free man, hath not power of any man's life more than a community hath; for king and beggar are born both alike free. But a community, in this consideration, as they come from the womb, have no politic consideration at all. If you consider them as without all policy, you cannot consider them as invested with policy; yea, if you consider them so as they are by nature, void of all policy, they cannot so much as add their after-consent and approbation to such a man to be their king, whom God immediately from heaven maketh a king; for to add such an after-consent, is an act of government. Now, as they are conceived to want all government, they cannot perform any act of government. And this is as much against himself as against us,

2. The power of a part and the power of the whole is not alike. Royalty never ad-

vanceth the king above the place of a member; and lawyers say, the king is above the subjects, *in sensu diviso*, in a divisive sense, he is above this or that subject; but he is inferior to all the subjects collectively taken, because he is for the whole kingdom, as a mean for the end.

Obj.—If this be a good reason, that he is a mean for the whole kingdom as for the end; that he is therefore inferior to the whole kingdom, then is he also inferior to any one subject; for he is a mean for the safety of every subject, as for the whole kingdom.

Ans.—Every mean is inferior to its complete, adequate, and whole end; and such an end is the whole kingdom in relation to the king; but every mean is not always inferior to its incomplete, inadequate, and partial end. This or that subject is not adequate, but the inadequate and incomplete end in relation to the king.

The Prelate saith, Kings are *Dii Elohim*, gods; and the manner of their propagation is by filiation, by adoption, sons of the Most High, and God's first-born. Now, the first-born is not above every brother severally; but if there were thousands, millions, numberless numbers, he is above all in precedence and power.

Ans.—Not only kings but all inferior judges are gods. Psal. lxxxii., God standeth in the congregation of the gods, that is not a congregation of kings. So (Exod. xxii. 8) the master of the house shall be brought **אל־האלהים** to the gods, or to the judges. And that there were more judges than one, is clear by ver. 9; and if they shall condemn **ירשעון jarshignur, condemnarint**, (John x. 35, **καὶ αὐτοὶ**) He called them gods; Exod. iv. 16, "Thou shalt be to Aaron **לֵאלהים** as a god." They are gods analogically only. God is infinite, not so the king. God's will is a law, not so the king's. God is an end to himself, not so the king. The judge is but God by office, and representation, and conservation of the people. It is denied that the first-born is in power before all his brethren, though there were millions. That is but said, one, as one, is inferior to a multitude. As the first-born was a politic ruler to his brethren, he was inferior to them politically.

Obj.—The collective university of a kingdom are subjects, sons, and the king their father, no less than this or that subject is the king's subject. For the university of